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A Fight Over Lawn Signs and "Matching Funds"

Albany's Democratic Primary Tests the New Campaign Finance Rules in New York

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LETTER FROM THE EDITORS

Dear Readers,

Welcome to the summer 2024 half-issue! We, Samantha Moon and Theo Sotoodehnia, your Editors-in–Chief, are beyond excited to share this issue with you. This issue was put together with the help of our wonderful design team, and we would like to extend a special thank you to our Head of Design, Ainslee Garcia, without whom this issue would not have been possible. We are thrilled to introduce the summer 2024 half-issue to you.

This issue kicks off with "A Fiscal Playground" by Natalia Armas Perez, which examines the past and present of K-12 spending in California. It continues with our cover story, "A Fight Over Lawn Signs and Matching Funds," in which Conor Webb explores the impact of a new campaign finance law in New York. "A Congressional Battleground" by Bryant Pranboonpluk explores Orange County's potential role in shifting control of the House of Representatives between political parties. The penultimate piece in our summer issue is "Graffiti: An Artistic and Political Tool," a set of interviews conducted by Rory Schoenberger and framed as a conversation between Schoenberger and New York City graffiti artists Craig Costello and Lee Quinoñes. The interviews discuss important themes including society's attitude towards graffiti and the criminalization of the graffiti movement. The issue concludes with "Tagged: New York City," a photo essay by Schoenberger, which acts as a companion piece to her interviews with Costello and Quinoñes.

Our Managing Board is so excited to be back at school for the 2024-25 school year. We hope you enjoy this issue as much as we enjoyed putting it together!

Politic Love,
Samantha Moon and Theo Sotoodehnia
Editors-in-Chief

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A Fiscal Playground: The Past and Present of California K-12 Funding

BY: NATALIA ARMAS PEREZ

As students flood store aisles eager to stock up on notebooks and gear for the coming academic year, California's public schools find themselves grappling with their own critical to-do lists. Schools rely heavily on state funding to cover teacher salaries, material costs, and other classroom essentials. However, state funding ebbs and flows with fluctuating tax revenues and California's overall fiscal climate. Recent economic shifts have cast a shadow over California's education budget and its essential shopping list.

On May 10th, Governor Gavin Newsom announced a new budget plan aimed at tackling this year's $27.6 billion deficit. Concurrently, his administration hopes to preemptively combat next year's estimated $28.4 billion shortfall. The 2023-2024 budget didn't accurately reflect California's fiscal outlook and overestimated available funds for public programs. Ultimately, this led to heightened spending and a larger than expected shortfall. The budgetary inaccuracy can be attributed to a variety of factors, including revenue decline and delayed tax collection. Other more unpredictable factors, including extreme weather patterns, were also partly responsible for the delay.

A series of storms swept several California counties during the winter of 2023. Levee breaks in Tulare and Monterey County damaged farmland while the Capitola Wharf flooded in Santa Cruz. "The only access road was closed for over 5 months due to a mudslide which affected the commute of hundreds of people in our neighborhood alone. This left folks without generators and provisions in a precarious position," shared Brendan Cabe, a former resident of rural Santa Cruz county.

Due to the severity of the storms across California, President Joseph R. Biden declared a Presidential Emergency Declaration. The Federal Emergency Management Agency (FEMA) provided disaster relief to those affected by the storms, floods, and landslides. In response to these natural disasters, the IRS proposed a November tax deadline in lieu of the traditional April cutoff.

Generally, the state budget pulls from current revenue to forecast the next fiscal cycle. The grace period proposed by the IRS delayed the availability of tax data. Without much data to pull from, policymakers crafted the state budget using estimates and forecasts. Consequently, California legislators didn't account for taxes falling approximately 25% shorter than estimated. As a result, the state unknowingly made plans to spend more than what was actually in its pockets.

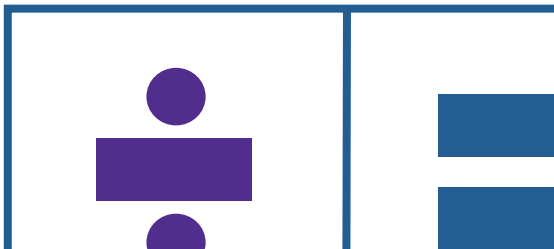
In accordance with the initial projections of California's 2023-2024 fiscal cycle, school districts received $76 billion for the 2023-2024 fiscal year. Once accurate tax information arrived in the fall, legislators realized through later calculations that schools had been overpaid $8.8 billion. To solve this problem, the Newsom Administration unveiled their overpayment solution, which they termed a "budgetary maneuver." Under this proposal, Newsom planned to allow schools to keep the money they were overpaid by recategorizing it as outside funds and borrowing from reserves. In other words, local allocations would remain the same while the overpayment would be paid off through smaller future budgets. This way, schools will face cuts down the line instead of immediately.

"We understand that it is a tough budget year and that certain cuts need to be made to ensure our State has a balanced budget," said Enrique Govea, a Legislative Assistant in the Office of Assemblyman Josh Hoover. "With current budget situations as the ones we currently experience, it's all about prioritizing and education shall remain at the top of that list."

However, money has already left the coffers for new facilities, amenities, and staff costs. School boards and interest groups are confronting the shortfall's implications as they navigate the upcoming school year. Additionally, the budget maneuver encountered considerable resistance from the educational community as it directly challenges California's main funding formula for public schools: Proposition 98.

According to Dr. Kristi Britton, the Assistant Superintendent of Business Services for the Ceres Unified School District, roughly "40% of the California state budget is reserved for schools under Proposition 98. It basically sets a minimum for K-12 funding by using a system based on attendance rates, state revenue, and per capita income."

Interest groups such as the California Teachers Association (CTA) and California School Boards Association (CSBA) have criticized Newom's maneuver. "Messing with current statutes once only leaves room for further interference," Britton said. In a statement released by the CSBA on May 16th,



Chief Information Officer Troy Flint noted that "the state essentially loans $8.8 billion in funds for schools to itself—money already given to schools—while reclassifying those funds as non-school spending for the purpose of Prop 98 calculations." Ignoring the overpayment would shrink this year's school budget on paper. Since future budgets rely on previous ones, school allocations wouldn't accurately reflect how much funding schools actually need.

Writing a massive sum off the books sounds like a generous deed on the surface. However, excluding the overpayment means schools will receive less money than anticipated for years to come. With a projected twelve billion dollar loss in school funds on the horizon, interest groups fear that Newsom's budget maneuver may be a wolf in sheep's clothing.

Delegates of the CSBA were apprehensive about California's budget situation early on. "At the CSBA Annual Education Conference (AEC) in December [of 2023], we saw the Legislative Analyst Office's initial shortfall numbers and knew it would be a battle to preserve base funding and prevent costly deferrals. This was on the heels of districts already adjusting overall spending down, as COVID funds were spent out this year," said Rebecca Cramer, a CSBA delegate. After the budget proposal came to light, several interest groups were quick to advocate against the maneuver. "CSBA quickly informed school board trustees so we could advocate with our legislators and explain how the deferrals would hurt us locally," said Cramer. As a member of the Pleasant Valley Unified School District (PVUSD) Board of Trustees, Cramer was heavily involved in this process. Dubbing "the budget battle this spring" as "unacceptable," Cramer echoed worries that legislation will have "unintended consequences or damaging fiscal impacts" on vulnerable districts.

Across the state, teachers voiced concerns about local impacts at their schools. Bouncing back from the pandemic was a struggle. Many feared that shaved-off funding would throw a wrench in efforts to prepare students for the future. On top of that, California teachers dreaded program cuts and student resource decline as a whole. Every district's financial situation differs, so the potential consequences of the maneuver were too varied to predict across the board.

Rance Skavdahl, a high school history teacher, was laid off during the 2008 recession. Back then, Skavdahl witnessed the push and pull of balancing financial feasibility and student access.

"Students lost a lot of important resources, including after-school busing for sports and other avenues for recreation. It didn't help that staff and administration were dealing with a harsh environment fostered by acrimony against the economic climate. It was rough," said Skavdahl. The severity of the current budget shortfall doesn't amount to the calamity of 2008, but parallels have fostered doubts about potential downsizing. In light of California's current economic state, Skavdahl had qualms about the preservation of educators' resources.

Skavdahl was fretful about "downsizing efforts impacting our access and use of technology in the classroom. Students use technology on a daily basis to learn, study, and whatnot." Additionally, professional development days and conferences have been vulnerable to the chopping block in the past. "As a teacher, you want to stay up to date with new developments in education, so it'll only make adaptation harder. I've learned how to be a better educator because of them," he said.

In June, this heavy backlash came to a point, and the California legislature was forced to address the situation. It announced a revised budget directly addressing Prop 98. One change included axing the proposed budget maneuver and holding on to an $8.4 billion reserve. This alteration—a byproduct of consistent advocacy—could help stabilize long-term budgets.

The integrity of Prop 98 was mostly maintained in the proposed June revision. However, ambiguous language still allows for the governor to write off funds under exceptional circumstances, such as another tax deadline delay or corporate taxes and federal income making up over half of the state's revenue. In spite of established limitations, the open-ended response to potential maneuvers left the CTA and CSBA wary. A potential secondary attempt to alter Proposition 98's formula could be a further threat to the efforts of educational interest groups.

"The frustrating reality remains that public schools are still not receiving the percentage of funding promised," said Michelle Waffle, the Santa Barbara County Delegate for the CSBA. "It often feels like we have to fight and plead for every dollar we get."

It is too early to tell how educational resources will fare as the budget deficit persists. With six million students, California public schools have, both figuratively and literally, substantial mouths to feed. Nonetheless, peering into political influences and the history of school financing could yield a greater understanding of the climate of the classroom.

Zooming out of the budgetary debacle, several forces contribute to the complicated relationship between education and government in California. Policy analysts, lobbyists, and others play an active role in an ever-changing socioeconomic ecosystem.

"Our education landscape is greatly shaped and influenced by the bills and policies that are passed and enacted out of Sacramento," said Govea, the California State Assembly Legislative Assistant. "From school lunches to operational hours, the structure of our educational public policy has been created by the decisions that are made at the state level." As a member of the Assembly Education Committee, Govea analyzes bills and discusses which educational policies to greenlight.

To get the bigger picture of potential policy impacts, bill staffers compile answers to questions posed by the Assembly Education Committee. Staffers create what is referred to as a Backgrounder document, which acts as a synopsis of the bills' motives and potential impacts. "It essentially [lays] out questions for the staffer to answer in regards to the origin of the bill's idea, any foreseeable support or opposition, who the sponsor is if any, and will request additional supporting evidence that the solution [proposed] will solve the issue at hand," explained Govea. Consultants then create an analysis of the bill, which helps the Committee

California schools vary enormously from district to district—from urban to rural, small to large. It is difficult to make policies at the state level that meet needs at the local level

in-form their final verdict on a given policy decision.

Meetings with interest groups and consultants help inform the committee's vote, especially in situations pertaining to equity. "Each Backgrounder document and analysis must have a question in regards to any potential inequity. More specifically, Backgrounder documents will typically ask how the proposed policy would affect individuals from minority or marginalized groups, if any impact," continued Govea.

Policymakers and interested parties collaborate heavily during the briefing process to further their respective policy goals. Considering California's diversity, stakeholder engagement is crucial to improving educational outcomes. Parents on school boards and teacher advocacy efforts are just a few examples of grassroot movements. With her own children attending schools in her district, Cramer ran to increase her involvement in the community and her children's education. "I wanted to liaise with and learn from other school board delegates in our region and be involved in education policy advocacy with the legislature. As a CSBA delegate, I see how other school districts are implementing state policies and innovating strategies for increased student success. California schools vary enormously from district to district—from urban to rural, small to large. It is difficult to make policies at the state level that meet needs at the local level," said Cramer.

Govea recognized the existence of local disparities, but noted that "state level education policy is a balance of what legislators believe ought to be in place for all students while acknowledging diversity." It's hard to target individual issues with umbrella policies, so solutions sprout from cooperation between various stakeholders. Be it interest group lobbying in Sacramento or smaller petitions to school boards, collaboration is key.

"Relationships and connections often wield significant influence. These connections can be pivotal in advocating effectively for our schools and students," said Waffle. "External forces change so much that it's crucial for a school board to stay relevant and include a variety of perspectives." Motivated by family experiences, Waffle advocates for increased mental health support in her home district of Orcutt. Through her platform, she drives local-level initiatives to improve resources for students.

Educational policy will never be one-size fits all. Each bill dramatically impacts students' lives by enhancing or damaging their educational experience. These complexities augment the importance of policy analysis to track successes and predict potential faults.

"You would want to be thoughtful about research and evaluation. You're investing millions, sometimes billions of dollars into programs. How are you evaluating implementation support and how would you know that it was going well?" said Jeannie Myung '02, the Director of Policy Research at Policy Analysis for California Education (PACE) headquartered at Stanford. She voiced that California's data infrastructure for these purposes is "falling short in applications of scale or long term effects" for policies hot off the press.

The California Department of Education (CDE) has earned a reputation for outdated and, at times, inaccurate data. "It's really difficult in California for researchers to access data that's not publicly available. And the data that is available isn't timely," said Myung. For example, Assembly Bill 2429, passed on June 13th of this year, mandates health education courses including fentanyl awareness. But the bill "relied on data from five years ago," according to EdSource. With delays in public accessibility, it's hard to create legislation that meets the ever-changing needs of students.

Meanwhile, states with robust data systems can address disparities more readily. For example, Tennessee's Value-Added Assessment System (TVAAS) assesses student success and teacher performance on a yearly basis. Policymakers and analysts identify areas of need across the state through public data points. In the 2013-2014 school year, reading intervention resources increased after TVAAS indicated low growth among grades 3-8.

But comparing California to Tennessee is not entirely fair. With greater size and population comes greater difficulty compiling accurate data. Regardless, data plays a pivotal role in public school education and there is undoubtedly room for improvement on data accessibility in California.

"We don't often build in these opportunities for research to see what works and what doesn't. Without a strong backbone of infrastructure, we can't assess successful programs and implement them elsewhere as promptly," Myung said.

According to Govea, educational policy is fundamental "because of the state's size and complexity." With several cooks in the kitchen, every decision has a sprinkle, pinch, and dab of stakeholder interest, analysis, and influence.

Like a pendulum, school financing has experienced expansion and contraction in turn over the past five decades. In the latter half of the 20th century, California's school financing was based on property taxes, with higher property taxes correlated with higher contributions to schools. Given the wide disparities in income levels across Los Angeles neighborhoods, schools in different districts received dramatically different levels of

“We’re seeing a political seesaw that can really go one way or the other. It can be in favor one day and not the next, it just depends on political interests in Sacramento and the voter mindset,” said Britton.

funding. Unsurprisingly, schools in wealthier areas thrived under this methodology while lower-income districts struggled. Beyond that, communities with lower property values (and therefore budget-strapped schools) were predominantly inhabited by people of color and ethnic minorities. These factors contributed to inherently unequal and class-segregated academic environments.

In the late sixties, John Serrano, a social worker and parent, was advised to move to a wealthier part of town to improve his son’s educational experience. In protest of the educational inequalities created by California’s school funding method, Serrano filed a suit against the California State Treasurer in 1968. The suit is known as Serrano v Priest I. It reached its conclusion when, in 1971, the California Supreme Court ruled that a funding system that denies equal educational opportunity was unconstitutional.

As a result, the century-old school funding system received an overhaul. Property taxes were rerouted to an overall pool that funded school districts across the state, not only local schools. This provision made school funding more equitable, but it also provoked ire among Californians.

“Californians were unhappy about their rising property tax bills to fund other school districts. Why should my property taxes fund that district?” said Myung.

In response to Californians’ discontent, the 1978 California legislature passed Proposition 13, which capped property tax rates, effectively slashing tax revenue by 60%. This diminished tax revenue meant less money for public education.

With local funds wiped, summer school closures and budget-crunching became inevitable in many districts. Paul Bruno, an assistant professor of education policy, organization, and leadership at the University of Illinois Urbana-Champaign, said that the loss in taxes made “equitably and adequately [funding] public schools” a more arduous task. California started to fall behind other states in school spending as pupil expenditure dropped below the national average. Prop 98 was intended to address this issue.

In the eighties, a 52% vote of approval for Prop 98 established a funding minimum for education across the state. It amended the state constitution to include a baseline funding rate isolated from the volatility of politics. “The formula for this is pretty complicated, but the basic idea is to force the state to use a certain minimum amount of available resources to fund schools (including community colleges). This takes some authority and flexibility away from the legislature and governor, who otherwise might choose to spend money on other things,” remarked Bruno.
Under the leadership of Governor Jerry Brown, in 2013, financial accommodations improved through the Local Control Funding Formula (LCFF). The formula, according to Bruno, focused on spending “the most in school districts identified as serving the highest-need students.”

Cramer found that codifying “equity funding in state education spending and [requiring] districts to report on how they use extra funds to close opportunity and achievement gaps” was essential to target “identified needs.” Stepping away from the rigidity of categorical grants allowed decisive spending from within. Schools can address their needs at the site level instead of depending on state-wide, general assistance. For example, districts with high English learner populations can invest in dual-language resources. Others can focus on adult education or expanding programs to fit their individual goals.

Furthermore, non-categorical grants could increase up to “20% for each student that is either low-income or an English learner. And, if a school district has a lot of those students, LCFF actually begins increasing those grants by as much as another 50%. So there’s potentially a lot of additional investment in school districts,” said Bruno.

In the present day, California has experienced a rapid whirlwind of fiscal policy.“We’re seeing a political seesaw that can really go one way or the other. It can be in favor one day and not the next, it just depends on political interests in Sacramento and the voter mindset,” said Britton.

It took decades for the California public school system to achieve appropriate levels of funding from the state. Now, interest groups, school boards, and districts view the new budget maneuver as a threat to California's history of equitable funding and the efforts that created the state's modern education system.

California's diverse educational landscape contributes to the challenges faced by schools in confronting student needs. Financial constraints and policy shifts continually shape the K-12 learning environment. Evidently, understanding the present condition of schools is crucial for pinpointing possible solutions and approaches to current issues in the classroom. Notably, a few overall trends have surfaced across the state.

Chronic absenteeism—missing 10% or more of the school year—has risen among a peculiar age group: kindergarteners. "The highest rates of chronic absenteeism before the pandemic used to be among high schoolers, which in my mind makes sense, right? Like teenagers going to lunch and not coming back or whatever that might be," said Myung. But NPR reports that more than one-third of California kindergarteners were chronically absent during the 2022-2023 school year. These students are less likely to reach grade-level reading proficiency by the third grade and have higher dropout risks.

Although the cause of rising chronic absenteeism remains unclear, Myung feels that there has been a "shift in priorities for parents after the pandemic… Many may view education as optional in nature because of quarantine. Online classes felt disconnected and inadequate for effective learning. Student groups that once had high attendance rates are steadily dropping, so the data is indicative of something greater," she said. "Things like off-season trips to Disneyland may seem harmless, but they can become a barrier for adequate student attendance and academic achievement."

Historically marginalized groups, including differently abled, Native American, and foster care students are also experiencing declining attendance rates post-pandemic. Barriers to educational attainment vary in nature and severity for these groups. While some lack adequate transportation to and from school, others' absences are due to a lack of mental health support or financial struggles. Homelessness, bullying, and familial obligations merely scratch the surface of potential hurdles faced by these students. Absenteeism among marginalized groups was only exacerbated by the pandemic, as employment, housing, and resource insecurity disproportionately affected these groups.

California is also struggling with another demographic issue: the struggle to maintain current population figures. Families moving out of state have taken a toll on public school enrollment, leading to six straight years of decline. With a dwindling birth rate and the allure of independent schools, California has struggled to increase its public school student population since 2007.

Enrollment numbers vary throughout the state, with some counties facing greater decline than others. For reference, Los Angeles County enrollment is projected to decline by 278,600 students over the next 10 years. Meanwhile, Sacramento and San Bernardino sit at an estimated 2% increase as residents flock from other counties. As a result, some counties stand poised to reap the benefits of enrollment trends while others must prepare for downsizing measures to stay afloat.

"A lot will also depend on how much state policymakers are willing to protect schools from the effects of declining enrollment. But there are trade-offs for them as well, because sending more money to schools with declining enrollment means having less money to spend on other schools or on other goals," said Bruno.

Retirement pensions and other large liabilities have become a cause of concern as declining enrollment directly correlates to falling revenue. With large payouts to deal with, school districts must prioritize certain areas while cutting corners on others. Furthermore, per-pupil costs have risen in response to shifting teacher-student ratios and class sizes. Considering current trends, students may lose access to specialized classes once cost-efficiency begins to decline.

"Hypothetically, why have three kindergarten sections when we can only fill two cost-effectively? It's disheartening to ask teachers to switch grade levels or transfer sites, but there aren't a lot of options," noted Britton.

On top of less than ideal enrollment trends, the budget deficit has only added to the financial strain on school districts. These circumstances raise the essential question: 'What comes next?'

Concern for the future of the state's classrooms is shared by many Californians. Accessible to students of all socioeconomic backgrounds, public programs are a pivotal part of equity efforts. Schools come in all shapes and sizes, just like the populations they serve. Myung reflected on her time with Teach for America, a nonprofit that enlists recent grads to teach in low-income communities. "There are so many problems that I saw from the frontline as a teacher. Like trying to teach kindergarteners how to read, but the lights would go out and there was no funding from the district to fix them," she recalled. Myung bought lamps at Target with her own money to light up her classroom, emphasizing a major point: adequate budgets represent the fulfillment of student needs.

The world of educational policy is complicated, and the budget deficit is a strong example of its depth. Different perspectives tell different tales, from the classroom to the board room. Interest groups and policymakers across California will continue working towards their respective goals for K-12's future.

"These are lives that can be made or shaped at this moment," said Myung. "We worry about the future and what may come next. But what can we do in the present?"

"These are lives that can be made or shaped at this moment," said Myung. "We worry about the future and what may come next. But what can we do in the present?" Predicting outcomes can only get us so far. Real impacts stem from the heart of it all: the students themselves.

A Fight Over Lawn Signs and "Matching Funds": Albany's Democratic Primary Tests the New Campaign Finance Rules in New York

BY: CONOR WEBB

With an 80-degree summer heat hanging thick, perspiring at tendees bite their nails at Dustin Reidy's campaign watch party. They have gathered at Orchard Tavern West, a restaurant just outside of Albany, New York. It's 9:00 P.M. on June 25th—the night of the long-awaited Democratic primary for New York State's 109th Assembly district, which encompasses the capital city of New York and neighboring suburban communities.

Dustin Reidy began his political career campaigning for Barack Obama in 2008. He founded an organization that helped elect Antonio Delgado (D-NY)—now New York's Lieutenant Governor—to Congress in a rural upstate district. He now works as campaign manager to Congressman Paul Tonko (D-NY) and as an Albany County Legislator.

In this race, though, Reidy is not a campaign manager—he is the candidate. In February, he announced his candidacy for the New York State Assembly at the SEIU1199 headquarters. The Democratic primary saw Reidy's candidacy and a competitive field of five other candidates, all currently serving as elected legislators in Albany County.

It wasn't a contentious debate or a controversial mailer that defined the character of this competitive primary, but rather changes to New York State campaign finance law designed to reduce the influence of large out-of-district donors. For residents interested in contributing to the political process, and for the candidates running to represent them, the law has radically changed how local campaigns operate.

To amplify the power of in-district donors, the law introduced "matching funds" into campaign finance vocabulary. Once candidates running for statewide office meet eligibility, donations from within their district are matched using taxpayer money at a set ratio—$10 turns into $130, $50 becomes $650, and so on.

"It has made a huge difference," Reidy said. "If you are someone that has a very big network of supporters that are in-district, which I am, then it multiplies your fundraising by a significant degree. I raised about $20,000 in-district and then maybe $25,000 beyond that, but I was over $200,000 raised on March 11th [because of the matching funds]."

"Being a person that is strictly on a social-security income, I have to be very frugal with how I budget my money. For someone like me that doesn't have the opportunity to give larger donations, I was very happy to be a part of that [...] the campaign finance matching program really incentivized me to donate. I've donated to [Reidy] several times through the matching funds."

The concept stems from a 2020 law that laid out the creation of the New York State Public Campaign Finance Board, which governs the system for augmenting the power of donations made within the district. 2024 is the first election cycle in the state in which the system has operated.

If a resident of the 109th district donated the maximum of $250 to a statewide campaign, the donation would actually be worth $2,550, courtesy of payouts from the Public Campaign Finance Board using state taxpayer money.

For Dee Burkins, a politically active resident of Albany who donated to Reidy's campaign, that prospect was a game-changer.

"Being a person that is strictly on a social-security income, I have to be very frugal with how I budget my money. For someone like me that doesn't have the opportunity to give larger donations, I was very happy to be a part of that [...] the campaign finance matching program really incentivized me to donate. I've donated to [Reidy] several times through the matching funds."

But the transition to this novel system has not been without hiccups. For grassroots campaigns, the change has been difficult and anxiety-inducing at times. Meredith Briere, campaign finance manager to Reidy, voiced some initial frustration with the program.

"This is the first time that public financing has been available. Not only are those of us who've never financed a campaign bumbling through it for the first time, but the Board of Elections is bumbling through it for the first time."

In turn, the Board of Elections and the Public Campaign Finance Board struggled to understand how the program would operate in practice. Early in the race, Briere was told that Reidy's 2024 campaign was ineligible for matching funds because donors who contributed to his 2023 re-election campaign must be aggregated with their 2024 contributions, a requirement that uniquely disadvantages him.

It turned out that the language in the law that differentiated

"committee" from "candidate" made this information incorrect—thereby keeping Reidy on the same playing field with the other candidates—but the proce ss to resolve the confusion was fraught with needless distress.

"We can't always get straight answers," said Briere. "You could get two different answers from two different people. It was really difficult, because even the Board of Elections and our representative at the public financing commission didn't know certain things and gave us misinformation."

To be eligible to receive thecampaign finance matching funds in the 109th Assembly district (thresholds vary district to district), candidates must have 75 unique individual in-district donors.

Reidy initially had anxieties about that requirement. "I was so scared about getting the matching [funds] to begin with. I felt like I had a two-week stretch where I was really struggling to get folks and then it just snowballed."

Once the slow stretch ended, Reidy blew past that individual donor requirement. All of the Democrats running in the 109th district who applied for the matching funds also met criteria, but only two, including Reidy, eventually received the matching funds maximum amount of $175,000.

Maximizing the potential of the matching funds can be an interesting—and sometimes counterintuitive—challenge. Briere, for instance, found the web of rules so complex that she sometimes had to turn donations away.

"If you get cash, it's different rules than a check, it's different rules to an online processor. People were bringing me $250 in cash and I had to give $150 back and say that I needed a check or some other form of payment."

Briere was also concerned about meeting eligibility requirements and receiving the funds given that some of Reidy's individual in-district contributors donated to his previous campaigns for the Albany County Legislature.

"All of that was unclear at the beginning. It is in the handbook, but there's always areas for improvement on language," said Briere. At one point, she was "furious" after being told by the Board of Elections that donations to Reidy's campaign in 2023 would hinder his ability to meet eligibility in 2024. A week later, Briere got a call from the Board of Elections. They were wrong. "That was one of the very stressful situations we dealt with."

Notwithstanding the struggle to adhere to the law's requirements, the nascent campaign finance system has fulfilled its purpose. It allows candidates to spend less time dialing for dollars and more time engaging with voters—and it's shaken up the race in the process.

Reidy said that candidates who receive matching funds will "have enough money for some mail, and probably for some digital ads. Maybe it won't be TV ads for everyone, but it has basically turned an open primary into almost every candidate having enough to get a message out there."

Briere turned her attention from fundraising to voter engagement early in the campaign. "Public matching made it possible to say, 'I'm gonna leave fundraising at the first third or half of the campaign process.' In the beginning, it's all about financing. It's all about getting the money in so that the end of the campaign trail can be about the voters."

In the primary race, the matching funds program provided the six candidates in the 109th district over half a million dollars total in additional campaign cash.

The campaign finance law permits candidates to use the match-

Credit: Scott A. Leadingham via Freedom Forum

ing funds on staff and messaging, from TV to mailers. Practically, that meant that every polling place was filled with a deluge of signs in support of each 109th district candidate by the June 25th election day.

While the matching funds system has effectively shifted fundraising hours toward direct voter engagement, some legislators in Albany have advocated for reforms to the campaign finance law. In fact, just last year, Democrats in the New York State Legislature advanced a bill that would have completely overhauled the program before Governor Kathy Hochul (D-NY) vetoed it.

This year, James Skoufis, a Democratic state senator for parts of the Hudson Valley in New York, attempted to resurrect the effort. His bill would have increased the number of donors and cash necessary to fulfill the matching funds' eligibility requirements. Skoufis' bill sought to prevent candidates with near-zero chances of winning from soaking up taxpayer money.

The Brennan Center for Justice and the New York Working Families Party criticized Skoufis' effort, not for its substance, but for its timing. They argued it was irresponsible—even bizarre—to reform the law when the 2024 election cycle, the first in the public matching funds history, had not yet concluded.
"Now is not the time," their memo of opposition reads.

While Reidy agreed the system could be fine-tuned in the interest of fiscal responsibility, he also agreed that the timing could have been improved. "I certainly share their concerns about looking to reform this before we even had the first shot at it. I think a lot of time was put into making this system happen. There's a balance. I [still] think this gives a much better chance for candidates to challenge incumbents."

Finance manager Briere thinks that the reform efforts underscore the complicated nature of the system in its inaugural election year.

"I think people like me that have [navigated the system] once who would be interested in doing it again, we'll learn from the experience. People will specialize in this. And just like any type of contract law, it'll grow, and it'll change, and they'll tweak it here and there," Briere concluded.

Most stakeholders acknowledge that the policy is far from perfect, but not all believe that the New York State Legislature should modify the law again. Reidy thinks there is more work to be done on the federal side.

"I think the best part about public financing is elevating the impact of in-district donors, and it deflates the financial power of giant, wealthy contributors. I think the biggest campaign finance work we need to do, unfortunately, is at the federal level [...] rebalancing the Supreme Court by adding more members and getting rid of Citizens United."

Citizens United is a landmark 2010 Supreme Court decision that held that corporate funding of independent political broadcasts were protected by the First Amendment, thereby allowing unlimited spending by corporations on political campaigns.

Reidy compared the situation to the primary in New York's 16th Congressional district, where progressive incumbent Congressman Jamaal Bowman lost in an upset to Westchester County Executive George Latimer. "We're going to have 700, maybe 800 to a million dollars spent on [the 109th district race]. You compare that to the Congressional primary in NY-16, where you're talking about $35 million, and about 31 of that is super PAC money. That's the real behemoth that needs to be taken on."

The Bowman-Latimer primary did not take in any matching funds, because the law only applies to statewide, not federal, races. Even if it did, the funds likely would have had little impact, given the unprecedented amount of national recognition and money circulating in the race.

As supporters, journalists, and Dustin Reidy himself anxiously studied the tavern's television sets awaiting election results over pizza and wings, the race for New York State's 109th Assembly district was called. Reidy ended up losing in the crowded June primary to Gabriella Romero, a Working Families Party-endorsed public defender based in Albany—the only other candidate in the field to also max out their matching funds.

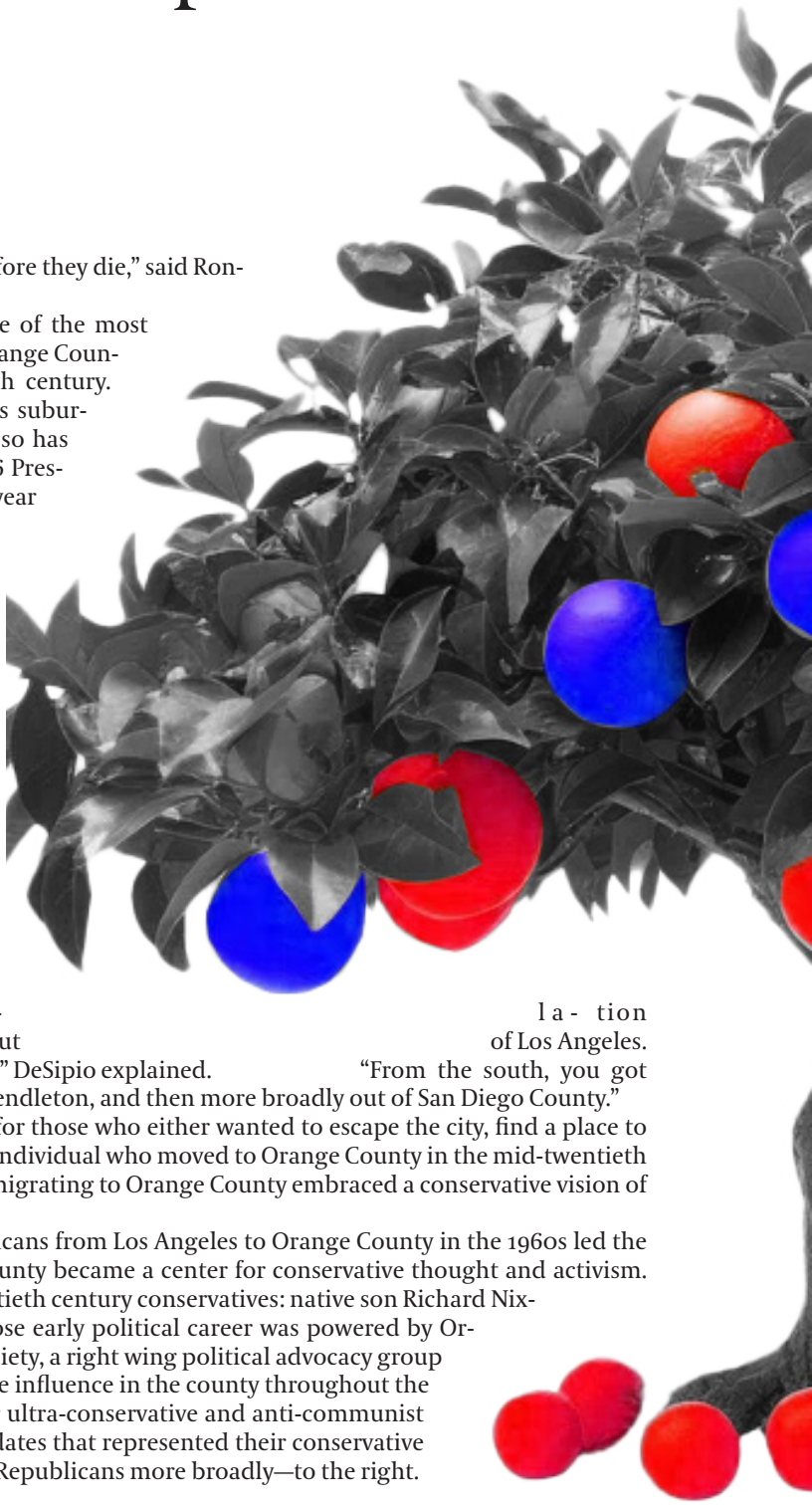
11,585 votes were cast in the primary. Whether a voter walked into their polling place on June 25th for Romero or for Reidy or for any of the six candidates on the ballot, they witnessed the impact of a campaign finance law that they may never have known existed. The sharp increase in lawn signs or the countless mailers that got to their doorstep were thanks to public campaign finance.

The law intended to counter the Citizens United Supreme Court decision that green-lit the influx of corporate money into the American political atmosphere. For Reidy, in these hyper-local, crowded, energetic races, it has done much more.

"The public matching is making it so every candidate has the ability to get the message out there. It gives everyone a shot."

A Congressional Battleground:
Orange County's Instrumental Role in Control of the House of Representatives

BY: **BRYANT PRANBOONPLUK**



"Orange County is where the good Republicans go before they die," said Ronald Reagan.

Located in Southern California, Orange County is one of the most populous counties in the United States. Largely suburban, Orange County was a conservative stronghold throughout the twentieth century. Yet in recent years Orange County's politics have shifted. As suburban counties across the country have become more liberal, so has Orange County. For the first time in eighty years, in the 2016 Presidential Election Orange County voted for a Democrat. This year four of Orange County's six congressional elections are competitive. In a tightly divided house, these four Orange County seats could mean the difference between a Democratic or Republican majority. So how did we get here today? Why have Orange County voters shifted away from the Republican Party?

Once an agricultural county filled with orange groves and cattle ranches, Orange County grew rapidly in the years after World War 2. In 1964, The Civil Rights Act was signed into law by President Johnson, effectively ending legal segregation in the United States. In 1968, Los Angeles experienced months of riots. Many middle class White Americans in Los Angeles and across the country responded to the social transformations of the 1960s by moving to the suburbs. Orange County acted as the landing spot for many of these Angelenos.

Louis DeSipio, a Political Science Professor at UC Irvine, expanded on the causes of Orange County's popu- la- tion boom. "It was a combination of things, it was white flight out of Los Angeles. So you got the movement of middle class white communities," DeSipio explained. "From the south, you got the movement of military and retired military out of Camp Pendleton, and then more broadly out of San Diego County."

In essence, Orange County served as a middle ground for those who either wanted to escape the city, find a place to retire, or were looking for a place to settle down. The kind of individual who moved to Orange County in the mid-twentieth century was a traditional Republican, a homeowner who in migrating to Orange County embraced a conservative vision of America and its future.

The movement of many upwardly mobile White Americans from Los Angeles to Orange County in the 1960s led the county's influence to grow within California politics. The county became a center for conservative thought and activism. Orange County lays claim to two of the most influential twentieth century conservatives: native son Richard Nixon and Ronald Reagan, an Los Angeles County resident whose early political career was powered by Orange County. The county was also home to The John Birch Society, a right wing political advocacy group known for strong conservative values. The group held massive influence in the county throughout the second half of the twentieth century, serving as a beacon for ultra-conservative and anti-communist views. The group threw their support behind political candidates that represented their conservative ideals, pushing Orange County Republicans—and California Republicans more broadly—to the right.

Yet, in the last decade, Orange County has become increasingly purple. During the 2016 Presidential Election, Secretary Hillary Clinton became the first Democrat in over forty years to win Orange County. The 2018 midterms saw multiple congressional seats switch from Republican to Democrat. Gil Cisneros (D) defeated Young Kim (R) in District 39. Meanwhile, Katie Porter (D) ousted incumbent Mimi Walters (R) in District 47. In 2018, for the first time in living memory, all six of Orange County's congressional districts were held by Democrats, effectively locking Republicans out of the county's congressional delegation.

The shift of Orange County voters from resolutely Republican to increasingly Democratic can be attributed both to Orange County's changing demographics in Orange County and large-scale trends in the Republican Party.

Orange County's increase in college educated voters, for instance, has provided a boost to Democrats. While it always had a comparatively high level of college attainment, Orange County has become even more highly educated over the last fifty years. With 28 colleges and universities, Orange County's expanding college-aged population is an important reason for Orange County's purpling.

"[Orange County has] always been a county that has had a large share of college educated residents. And over the last several years, college educated voters have trended more democratic than they have in the past." Jon Gould, Dean at UC Irvine's School of Ecology, stated.

The University of California at Irvine, where Dean Gould teaches, did not even exist when Ronald Reagan rode massive support in Orange County to become Governor of California in 1964.

Dean Gould also addressed Orange County's demographic transformation, explaining "Moreover, there has been a rise in both Latino and Asian voters here in Orange County. At the moment, it is almost a third, a third and third, between three groups White, Asian and Latino. White voters, a plurality of them are Republican. Latino voters, a plurality of them are Democratic. Asian voters, a plurality of them are independent. So it really is this interesting mix of different racial and ethnic groups."

These demographic shifts in Orange County are amplified by the changes within the Republican Party. Many Orange County Republicans identify more strongly with values like free trade, low taxes, and an atlanticist, interventionist foreign policy that have receded from the fore of Republican politics; they identify as "Reagan Republicans." These Reagan Republicans are ideologically conservative and hold views aligned with those of Ronald Reagan and George H.W Bush. Reagan Republicans disapprove of the current state of the Republican party—namely, its shift further and further to the right.

"They are not Trump Republicans. And they are concerned about a Republican Party that seems to be opposed to gay rights. They are concerned about a Republican Party that is doubling down on anti-abortion language and potentially constricting contraception as well," Dean Gould said.

This key voting block is a reflection of why Orange County has transitioned into a purple county in the last ten years. "Some of them would have peeled off and just become independent. Those who've stayed still aren't that excited about where the party's going right now," Gould continued.

Celeste Wilson is a Democratic strategist in Orange County and the current campaign manager for Joe Kerr's campaign. Kerr is the Democratic candidate in California's 40th congressional district, a Republican held swing seat in northwestern Orange County. A longtime California resident, Wilson has seen first hand the political shift that is occuring in Orange County. "A big part of the reason that you're starting to see Orange County turn blue is because the Republican Party has gone to the extreme. So you're starting to see people become more disenfranchised with the extremism of the Republican Party," Celeste Wilson said.

While Orange County's political evolution may sound like that of many other suburban counties, there are two factors that make understanding the political instincts and idiosyncrasies of Orange County voters particularly important in 2024. First, Orange County's size—it is home to roughly as many people as the state of Utah. Second, four of its six congressional districts are competitive. Since Republicans control the House of Representatives with a bare four-seat majority, Orange County on its own could decide control of the house. To understand the dynamics of this year's house races in Orange County, it is instructive to examine each in isolation.

Congresswomen Young Kim and Michelle Steel, who represent Congressional Districts 40 and 45, are incumbent Republicans fighting for re-election this fall in competitive Orange County districts. In the 2020 election Congresswomen Steel and Kim successfully flipped their seats. Both currently lead their opponents in the polls, but given the unpredictable nature of this election cycle, these two races have been labeled as competitive.

In Congressional District 49, Mike Levin (D) is currently seeking a 4th term in office and is being challenged by Matt Gunderson (R), a prominent community member and businessman. Levin, who represents a wealthy, coastal strip in the southern half of the county, narrowly leads his opponent in polling.

The closest Orange County race is the battle for Congressional District 47. Orange County's 47th Congressional District is currently held by Democratic Congresswoman Katie Porter, who gave up her seat to unsuccessfully run for the US Senate this year. With Porter out of the race, Republicans see an opening to flip the seat.

"Katie Porter is just a fundraising machine. So, you know, money helps with their [the Democratic Party's] attempt to flip the seats," Executive Director of the Orange County Republicans, Randall Avila, said.

Democrat Dave Min and Republican Scott Baugh are vying to replace Porter, and the race is expected to be tight. Porter beat Baugh by three percent in 2022, and Min does not have the advantage of incumbency. Porter's district, which includes the city of Irvine and wealthy coastal communities like Newport Beach, is a microcosm of Orange County—it is home to traditionally conservative suburbs, college campuses, and wealthy beach enclaves.

Changing demographics have dramatically altered the way campaigns are run in Orange County Democrats are leaning into issues such as abortion, gun control, and welfare. Republicans, on the other hand, are campaigning on issues such immigration and the economy. Democrats are nationalizing the race, effectively tying congressional GOP candidates to former President Trump and the MAGA Movement. Republicans, on the other hand, are using a localized approach that creates some separation from the MAGA movement.

Randall Avila, an Executive Director of Orange County Republicans since 2018, has been at the center of voter mobilization and fundraising efforts for Republican congressional candidates in Orange County. Avila highlighted a series of issues that he felt were most prescient to voters this election cycle, stating, "And, you know, across the board, what we're seeing is, number one, the border is a big issue… The other one is the cost of living and affordability, inflation." Orange County Republicans hope that these two issues will both generate appeal amongst the Republican base and reel in independent voters within the county.

Winning in Orange County is crucial to Republicans maintaining control of the House. With two incumbents to protect as well as a potential pick-up opportunity in District 47, Orange County Republicans have been able to raise huge amounts of money for their congressional candidates. Speaker Johnson has made visits to the county, and the National Republican Congressional Committee has poured in tons of resources.

"[Orange County] is one of only three counties among the top 25 by population that are truly purple"

Just as Republicans believe Orange County will be crucial to their efforts to retain control of the house, Democrats believe Orange County will be crucial to regaining control. Local Democrats have decided to focus on a different set of issues from their Republican counterparts. Instead of immigration and inflation, Democrats believe abortion and democracy will prove decisive in November.

Professor DeSipio argues that Democrats' focus on social issues and national politics reflects a deliberate strategy. "I think the Republicans are trying to run them as local races because they need to distance themselves a little bit from Trump and from the MAGA movement. The Democrats are tending to run more national races," Professor DeSipio stated.

In an affluent, educated area like Orange County, Democrats see their path to victory in demonstrating that the modern Republican Party is socially and temperamentally out of step with suburban America. Issues like abortion and protecting democracy, Democrats believe, highlight this dichotomy.

One Democratic candidate who has combined the national significance of the 2024 election with a localized approach to campaigning is Joe Kerr. Kerr is a retired firefighter who served as captain with the Orange County fire authority for 34 years. Kerr is currently challenging incumbent Congresswoman Young Kim in California's 47th Congressional District, the northwestern corner of Orange County. "I think the biggest catalyst was January 6. I really did think that someone like me would have to run for Congress just to protect democracy," Kerr said. As a retired firefighter and Vice President of the Orange County Central Labor Council, Kerr has extensive experience in public service and advocacy.

When asked to highlight specific issues most important to voters this fall, Kerr said, "So those are the top three that we're looking at: climatic extremes, gun safety, reducing gun violence, and then choice as it relates to civil rights. That's a pretty good start. But there's also Medicare, Social Security and things like that." Kerr's emphasis on reproductive rights, gun control, and climate, Democrats believe, will focus the campaign on issues on which Orange County Republicans are out of touch with their constituents.

Although it remains to be seen whether or not the Democrat's campaign strategy will be successful in the Orange County races. The results of these elections may indicate increased shifts among the Orange County Electorate. Given the county's large population, candidates like Kerr have to appeal to a diverse group of voters. "[Orange County] is one of only three counties among the top 25 by population that are truly purple," Dean Gould said. The county also acts as an indicator for how other purple counties are swaying in the fall. Should Kerr be successful in his bid to unseat Congresswoman Kim, it would be an indicator of groups that have been seen as traditionally Republican moving further away from the GOP.

As the country becomes increasingly polarized, Democrats and Republicans hold drastically different visions for the future of the United States. With such a narrow majority, every seat will matter in determining control of the house this fall. Understanding Orange County's political wants and needs may hold the key to controlling the House of Representatives and, with it, the ability to implement either party's agenda.

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Graffiti: An Artistic and Political Tool

INTERVIEWS WITH CRAIG COSTELLO AND LEE QUINOÑES

Lee Quinoñes (LQ):

Lee Quinoñes was born in Puerto Rico in 1960 and raised in New York's Lower East Side in the Alfred E. Smith Projects. He began subway graffiti in 1974 at just thirteen years old and quickly became well-known for painting whole subway cars. In 1978, Quinoñes painted the first handball court mural "Howard the Duck" at Corlears Junior High School, his old school, featuring the slogan "Graffiti is a art and if art is a crime, let God forgive all." This mural had an immense impact on the movement to bring graffiti above ground. In 1980, Quinoñes held his first gallery show at White Columns, an alternative NYC gallery. This show is recognized by the art world for sparking a trend towards painting graffiti on canvas. Quinoñes has since transitioned to a studio based practice, and his work has been displayed in museums like the Whitney Museum of Art, the Museum of Modern Art, the Museum of National Monuments, and MoMA PS1.

BY RORY SCHOENBERGER

PHOTOS PROVIDED BY CRAIG COSTELLO AND LEE QUINOÑES

Craig Costello (CC):

Craig Costello was born in 1971 and grew up in Queens, New York, immersed in the graffiti, skate, and punk scenes. After moving to San Francisco for art school, he became interested in photography and conceptual art, beginning a transition away from "classic graffiti 'tags'" and towards more abstract drips of ink. Costello is well known for creating his own twists on classic graffiti instruments, modifying traditional paint markers such as the UNI PX70 and creating his own inks, often silver inks. In 1998, Costello moved back to New York and began to sell his ink and markers at the Lower East Side design shop Alife. His brand, Krink, is the first ink and marker company targeted toward graffiti writers. Since its inception nearly three decades ago, Krink has grown into a global brand that also sells apparel and accessories and has collaborated with brands like Nike, Vans, and Tiffany & Co. In addition to running Krink, Costello continues to create independent artwork which has been exhibited at museums including the Palais De Tokyo and the Museum of Contemporary Art.

What sparked your interest in graffiti?

(CC): I'm from an era where I feel like every kid dabbled in graffiti. It was just part of growing up in New York. It was common and fun and goofy. Some people took it really seriously and some people didn't, but it was just kind of a thing that was around. I think graffiti has a lot of different personalities, but the creative types are more exposed to and more interested in it. And, I was a creative type.

(LQ): What sparked my interest in art is a better question, because graffiti to me is a state of mind, an attitude, an urgent moment. I was living in a very challenged environment 50 years ago, and art was the only thing that I felt belonged to me but also belonged to everyone outside of myself.

What are your other artistic interests and inspirations besides graffiti?

(CC): For me, creativity is a lot of things. For example, I cook, and I think cooking can scratch that creative itch. I'm interested in music, architecture, and design. Design has become really relevant to me in the past twenty or so years since having the Krink brand. I've learned a lot from it, and it has been really interesting. I also think production is really interesting—with production there is both thinking about making something and bringing it into the real world. This is especially true when discussing collaborative projects. There are a lot of limitations: budget, minimum orders, a minimum number you can produce. And so production is really interesting as far as asking yourself just how you can make something happen.

(LQ): I love performance art, whether it's dancing or acting. I love film, it was one of my first draws. I've been involved in films both behind and in front of the camera over the years. I'm always fascinated by that medium and how it's used to portray a time and a feeling in the air. Obviously, it's the most attractive out of most mediums because it's both visual and auditory. It's a very visceral experience to see a film.

Are there other people in the graffiti scene that have taught you or inspired you?

(CC): A lot of my friends are graffiti writers. If you're the creative type, you end up running with creative people, and, through the years, we all morphed into fine artists, designers, fashion designers, and musicians. I get a lot of inspiration from people. In New York, it's super cutthroat and you really have to hustle, and I think that that's a big inspiration to maintain my art and business.

(LQ): I'm inspired by people that are curious and daring. When I first started back in 1974, I was only about 14 years old. I looked up to just a few characters that were painting bigger and broader pieces at that time: Cliff 159 and Blade, who I would not meet until years later.

[Cliff 159 was a Bronx-based artist who started writing graffiti in 1970 and specialized in tagging whole subway cars. Steven Ogburn, known as Blade, began graffiti in 1972 and is one of the most prolific NYC graffiti artists, also famed for painting whole subway cars. He later transitioned to gallery works.]

Imagine having a hero you look up to who is anonymous. Your only perception of who they are is their name and the way they paint. Witnessing others' work was a very spiritual experience for me as a child. Now, I'm inspired by many artists across the spectrum. Most are not graffiti artists and don't come from a graffiti-inspired background; they're just incredible artists. Currently, some of my favorites are Jenny Holzer, Francis Bacon, and John Michel Basquiat, who was a dear friend that I shared a studio with back in the 70s. Nowadays, some of my contemporaries are people like Mare 139, Mickalene Thomas, and Derrick Adams.

Do you consider all graffiti to be political?

(CC): I don't think a lot of graffiti writers are being intentionally political, but I think what they're doing does end up being political because they're not fitting into what you should be doing as a kid, or as an adult—they're bending and breaking the rules. I think that some people, regardless of the law, might look down on graffiti artists because they feel graffiti is a waste of time. Graffiti artists are often disenfranchised, on the fringe, and trying to find their voice. I think that in itself is a pretty big act, one that leaves a mark that then inspires others, and I think that therein lies some sort of political force.

(LQ): I think all art is political. The act of creating art is political in itself because you're taking life by the horns. Whether it's directly political or indirectly/subliminally political, it's still a political act to actually pick up a medium and exercise your right to express something. Writing "I love John" on a tree trunk is proclaiming your love for someone right there for the world to see, and that in itself is a political act. Many people never find their voices in their lifetime—they live under the cloak of fear, resentment, and denial. In society, we all have our little speed bumps and points of paralysis where we feel we can't move forward, but art is what allows us to, whether it's in the privacy of your studio, your home, or in a subway yard.

How has society's attitude towards graffiti changed over the years?

(CC): I think that there has definitely been a major uptick in the past 25 years of graffiti being more accepted as art. People have had pretty significant careers that have started in graffiti—careers in fine art, in design, in running businesses. Back in the day, graffiti was a symbol of lawlessness and a bad economy, so the perception of graffiti has changed a lot. I also think that there are a lot of people who grew up with graffiti art and are more accepting of it today because of that. So, there has been a natural progression of acceptance and openness about graffiti and recognizing its value.

(LQ): Usually, art movements, controversial or not, have to create a skin for themselves right from the start in order to survive the court of public opinion. If the Evening News tells you that a set of people are misdirected and disenfranchised and have no love for their own society, of course most are going to believe that. Fifty years ago, people were saying that graffiti artists were scoundrels and wild teenagers, but young people were just reacting to the circumstances in our society. When a city forgets its young and then beats its young, the young stand up. The young want to change the world and start on an even platform. There are sleeping giants in every generation, and this movement was and is a sleeping giant.

Do you feel that graffiti is respected artistically? Does putting graffiti in galleries ruin its intended purpose?

(CC): Is graffiti respected by academics? No, it's not. Are you going to have some graffiti writer getting his MFA at Yale? I don't think so. So, no, I don't think that it's reached that point. I think it might take one more generation of people who have grown up with graffiti art and understand the aesthetic of it before graffiti can be translated to the high-minded, white, MFA world. I don't think that those people really understand or can speak on it yet, but I do think that graffiti one hundred percent belongs in a museum. It's fine if graffiti is in a gallery; it doesn't disrupt the point. Graffiti is an inherently American art, and there's a lot being missed there by the greater academic, fine art world.

(LQ): I think it's taking its time. Movements usually take time to manifest themselves and actually mature—between 10 and 50 years. People look back and go, "Oh, my God, there was something there" only because they've had time to reflect. When we reflect, we start to see the workings and the politics behind things and then we start to understand why people reacted the way they did. In the case of the graffiti movement 50 years ago, you have to remember: in the midst of so much rebellion, turmoil, war, inequality, and racial injustice—in the midst of all that—about 50,000 young souls picked up cans of spray paint and proceeded to change the world. When I picked up my first cans of spray paint, I was already on a mission to change the movement itself.

Do you think that graffiti is in any way immoral? Do you think that there is a problematic aspect of graffiti given that you're inherently putting art in spaces where it's not intended to be?

(CC): No, I don't think so. I can see why people get upset, but immoral just seems like a strong word. It's a tough one because, yes, it is invasive. It touches on all kinds of property issues and ownership. I understand that that's an issue. I understand why people would be upset. However, treating everyone who writes graffiti like a criminal and condemning them, locking them up, and telling them what they do is worthless has a fundamentally different effect than praising them and giving them space and some kind of agency or nurturing them. For example, there are parts of Europe where, as graffiti grew, people said, "Wow, look, they're doing art in the streets." That is very different than saying, "Hey, they're all criminals. We need to stop this and arrest them."

(LQ): It's all about product placement. Do you want to go and paint on somebody's private car? No. Should you paint over existing art? Absolutely sacreligious. Do you want to touch a church? No. How do you draw the line? There's already a problem in society with people being inundated with information. You're in a subway car, or a bus, or you're driving down the highway, and you see ads for things that someone is trying to sell you that you don't need, or you don't want. Why am I having to hear ads about how to fix my tax problems or how to grow hair when you're going bald? That is a problem in society already. Graffiti showcases the existence of these problems as well as the predatory forces out there that take advantage of people; not only of people of color, but with different genders and sexual orientations. The fact that graffiti was in Pompeii, in 79. AD. and even before shows that the political system there probably was not working for the masses either.

Is Graffiti past its prime? How has increased legislation changed the graffiti scene?

(CC): Absolutely not. I think about increased legislation often. The early to mid 1980s was a high point of really classic New York City subway graffiti. People could go in and paint a train that was eight feet by forty feet. They could take their time; nobody was chasing them. You can see the time if you look at the painting itself—at the size of it, the colors. Somebody would have had to bring thirty to fifty cans with them and take 4-5 hours to do it. Because of the crackdown, today, graffiti writers can bang something out in twenty minutes maximum and three to four colors. That's due to legislation and the environment and structure that has been built around graffiti. So, if people again were afforded some kind of space and opportunity, I think graffiti would go in a different direction. A lot of the graffiti that you see today was created without space or time. Artists are just trying to make the simplest mark that's gonna get buffed in less than a week. There's no time and little opportunity. And then people say, "Oh, this is all garbage. This is all terrible," and, yeah, it's not that great because they don't have the time and energy to put into it like they did before when there was essentially no economy to fund the war on graffiti.

[Before 1972, New York City did not have a law against graffiti and the Metropolitan Transit Authority's rule treated it as an offense about as serious as eating on a train. However, in 1972 New York City Mayor John Lindsay declared a war on graffiti, passing legislation that defined graffiti as a crime subject to legal penalty.]

(LQ): No, graffiti will never pass its prime. If it does, we're all dying. Graffiti is a state of mind and a true testimony to the people of a certain time and circumstance. Legislation can come and go and is often used as an object to boost morale or a politician's likeability. But what is legislation doing for the community? What are legislators actually sacrificing to make the community better? In my case, I sacrifice my life, my dignity, and my persona in the court of public opinion. I sacrificed unapologetically because I knew that what I was doing was the right thing. I love the saying: "Just because things are right now, doesn't mean they were wrong back then." That's how I navigate around all the naysayers, whether they're heads of state or rolling heads in the hood. I know my lane, and I'm comfortable in exercising my practice. What's beautiful about this movement is that it is a very democratic movement. There are also many women artists in this movement. My sister herself painted trains back in the 1970s with me, and she was one of the first to actually take that pilgrimage into those very dreadful subway tunnels and subway yards. Women of all ages can have a voice through this art form that accepts them both for the heroism it takes to create work in the public eye and the skill it takes to work with a very difficult tool: the spray can.

How have your roots in graffiti informed your current work?

(CC): I was a very active graffiti writer, and I learned a lot from it. I developed a lot of style and aesthetics from graffiti that still inform me today. They worked for me in the graffiti world, and, as I took them out of the graffiti world, they continue to work for me. I feel like these aesthetics are still interesting to me and a part of what I do. So, that's just been really natural for me, and I think I've been very fortunate to have those things work in a broader world.

(LQ): My roots in graffiti inspire poetry. Resilience and resistance. TwentyFour-Eight. Eight ball corner pocket. That's just my poetry coming out. I love poetry. I write poetry in my work. I wrote poetry on my subway cars fifty years ago. I've been painting longer than you've been living, most likely. And it's amazing. Fifty years. Five decades. It's crazy.

[To CC] Why did you develop the Krink brand?

(CC): I started making Krink to write graffiti. Krink as a product was great—it was very successful and it allowed me to stand out and have this lore around who I was and what I did—the guy that makes his own ink and makes his own markers. I was prolific, but I think the aesthetic was a big part of it. That was in San Francisco, but when I moved back to New York, because New York is just so commercial, people already knew who I was through graffiti and pushed me to make Krink. So I made it as a creative project and to sell. I didn't think anybody would want to buy it, but it did quite well. And then people showed more and more interest, so it was a natural progression. I was never sure about Krink as a business. But it was one of those things where the phone kept ringing. Making ink helped me make a living, and then it just grew and grew.

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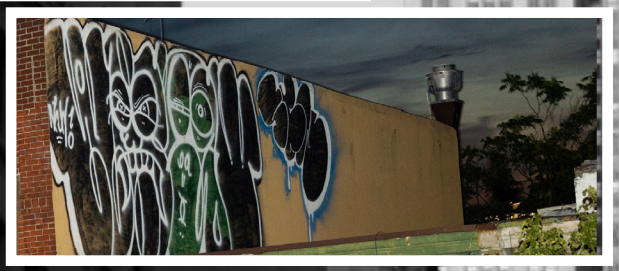
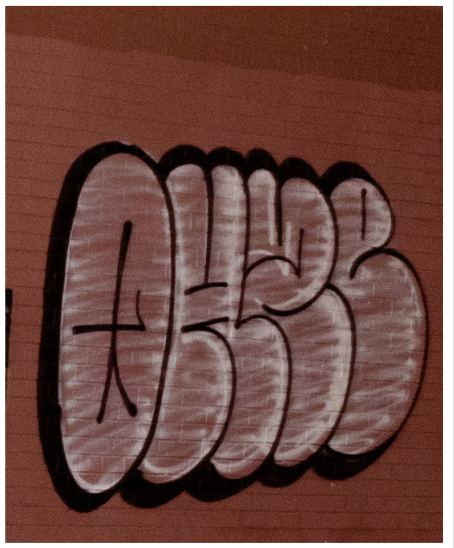
BY: **RORY SCHOENBERGER**





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